

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                                    |                           |                                                                                                                                                                                                                       |
|---------------------------------------------------|------------------------------------------------------------------------------------|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Sara Griffin                     | Team:<br>Squad #04                                                                 | CCRB Case #:<br>201901932 | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Saturday, 03/02/2019 10:30 AM | Location of Incident:<br>In Front of § 87(2)(b) and<br>103rd Precinct Stationhouse | 18 Mo. SOL<br>4/19/2021   | Precinct:<br>103                                                                                                                                                                                                      |
| Date/Time CV Reported<br>Tue, 03/05/2019 10:28 AM | CV Reported At:<br>CCRB                                                            | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Tue, 03/05/2019 10:28 AM                                                                                                                                                                |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Subject Officer(s)      | Shield | TaxID  | Command |
|-------------------------|--------|--------|---------|
| 1. POM Brian Lapp       | 01940  | 949198 | 103 PCT |
| 2. POM Gustavo Martinez | 08370  | 961922 | 103 PCT |
| 3. Officers             |        |        | 103 PCT |

| Officer(s)               | Allegation                                                                                                           | Investigator Recommendation     |
|--------------------------|----------------------------------------------------------------------------------------------------------------------|---------------------------------|
| A . POM Gustavo Martinez | Force: At § 87(2)(b), Police Officer Gustavo Martinez used physical force against § 87(2)(b)                         | A . Closed - Pending Litigation |
| B . POM Brian Lapp       | Abuse: At the 103rd Precinct stationhouse, Police Officer Brian Lapp did not obtain medical treatment for § 87(2)(b) | B . Closed - Pending Litigation |
| C . Officers             | Abuse: At the 103rd Precinct stationhouse, officers did not obtain medical treatment for § 87(2)(b)                  | C . Closed - Pending Litigation |

### Case Summary

On March 5, 2019, § 87(2)(b) called the CCRB and filed the following complaint.

Since his March 2, 2019 arrest, § 87(2)(b) has been incarcerated at the § 87(2)(b) on Riker's Island.

Between March 18 and April 9, 2019, the undersigned investigator exhausted contact attempts to § 87(2)(b) attorney. On April 9, 2019, the undersigned investigator called § 87(2)(b) attorney. § 87(2)(b) attorney decided against § 87(2)(b) providing a statement while his criminal case was open and decided to close § 87(2)(b) case as "Pending Litigation." The undersigned investigator explained to § 87(2)(b) attorney how the complaint could be reopened at a later date.

The Field Team obtained surveillance footage capturing a portion of the incident. § 87(2)(g) The investigation requested Body Worn Camera footage and the results are pending and will be added to the case file upon their receipt.

§ 87(2)(g)  
§ 87(2)(g), it is therefore recommended that this case be **Closed-Pending Litigation**.

Squad No.: \_\_\_\_\_

|               |           |                    |       |
|---------------|-----------|--------------------|-------|
| Investigator: | _____     | _____              | _____ |
|               | Signature | Print Title & Name | Date  |

|               |           |                    |       |
|---------------|-----------|--------------------|-------|
| Squad Leader: | _____     | _____              | _____ |
|               | Signature | Print Title & Name | Date  |

|           |           |                    |       |
|-----------|-----------|--------------------|-------|
| Reviewer: | _____     | _____              | _____ |
|           | Signature | Print Title & Name | Date  |